



Notification Waiver Determination

REST – Quinbrook III Partnership and Quinbrook III (AU) Co-Investment Trust

Acquisition	Retail Employees Superannuation Pty Limited as trustee for the Retail Employees Superannuation Trust (REST) proposes to undertake the following passive investments: • a commitment for limited partner interests in Quinbrook III SCSp (the Quinbrook Main Fund); and • a commitment for units in Quinbrook III (AU) Co-Investment Trust (the Quinbrook AU Co-Invest Vehicle), a parallel co-investment vehicle to the Quinbrook Main Fund for Australian investments, as described in the transaction documents provided as part of the application (the Acquisition). REST applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 September 2026

Parties to the Acquisition	The acquirer, REST, is an Australian profit-to-member superannuation fund with approximately 2 million members and around \$112 billion in funds under management (as at 30 June 2026). The targets, the Quinbrook Main Fund and the Quinbrook AU Co-Invest Vehicle, are managed by Quinbrook Infrastructure Partners (Jersey) Limited and associated entities (Quinbrook). Quinbrook is a global investment manager that raises and manages capital to invest in energy related assets and projects, with a focus on the infrastructure solutions needed to deliver the energy transition. The Quinbrook Main Fund has made investments in solar and storage, battery and grid firming projects across Australia. All projects are currently at the development stage. The Quinbrook AU Co-Invest Vehicle has not yet made any investments. The Quinbrook Main Fund will seek to invest in project assets and platform businesses at the development, construction and operational stages, across a broad range of energy infrastructure, including energy supply, renewable energy generation, renewable heat and fuels production and energy storage and infrastructure solutions. The Quinbrook Main Fund will target investments in the United States, Canada, the United Kingdom and Australia. The
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	Quinbrook AU Co-Invest Vehicle will make investments alongside the Quinbrook Main Fund in Australia. REST has interests in renewable energy related projects and assets in Australia, including in wind farms and green and climate transition related assets.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is a small horizontal overlap between REST and the targets in the development, construction and operation of electricity generation and battery energy storage systems in Australia b. the parties' combined share in electricity generation and storage capacity in the National Electricity Market (NEM) is expected to be low c. there does not appear to be any substantive change in the control of the targets d. there are alternative electricity generation and storage providers in the NEM and Australia-wide. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act